

**THE PUNJAB WATER AND SANITATION AUTHORITY
ACT 2025
(VII of 2025)**

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1THE PUNJAB WATER AND SANITATION AUTHORITY ACT 2025

(VII of 2025)

[29th January, 2025]

An
Act

to provide for establishment of the Punjab Water and Sanitation Authority.

It is necessary to establish the Punjab Water and Sanitation Authority for developing, operating and maintaining water supply and sanitation systems; conserving and preserving groundwater and water resource management in the Punjab and to provide for the matters incidental thereto and ancillary therewith.

Be it enacted by Provincial Assembly of the Punjab as follows:

1. Short title, extent, application and commencement.– (1) This Act may be cited as the Punjab Water and Sanitation Authority Act 2025.

(2) It extends to the whole of the Punjab.

(3) It applies to areas of districts Lahore, Faisalabad, Multan, Rawalpindi and Gujranwala and such other areas as the Government may, by notification in the official Gazette, specify, from time to time.

(4) It shall come into force at once.

2. Definitions.– In the Act:

(a) “Act” means the Punjab Water and Sanitation Authority Act 2025;

(b) “Agency” means the Lahore Water and Sanitation Agency established under the Lahore Development Authority Act, 1975 (XXX of 1975) and Faisalabad Water and Sanitation Agency, Multan Water and Sanitation Agency, Rawalpindi Water and Sanitation Agency and Gujranwala Water and Sanitation Agency established under the Punjab Development of Cities Act, 1976 (XIX of 1976) and any other Agency established under the Act;

(c) “area” means the service area of an Agency;

(d) “Authority” means the Punjab Water and Sanitation Authority established under the Act;

(e) “Chairperson” means the Chairperson of the Authority;

(f) “Director General” means the Director General of the Authority;

(g) “Fund” means the Punjab Water and Sanitation Authority Fund established under the Act;

(h) “Government” means Government of the Punjab;

(i) “Managing Director” means the Managing Director of the Agency;

(j) “person” means a natural or juridical person;

(k) “prescribed” means prescribed by the rules or regulations made or framed under the Act;

(l) “regulations” means regulations framed under the Act; and

¹This Act was passed by Provincial Assembly of the Punjab on 20 January 2025; and was assented to by Governor of the Punjab on 29 January 2025; and was published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2697-2707.

(m) “rules, means the rules made under the Act.

3. Establishment of Authority.– (1) The Government shall, by notification in the official Gazette, establish an Authority to be known as the Punjab Water and Sanitation Authority for carrying out the purposes of the Act.

(2) The Authority shall be a body corporate, having perpetual succession and a common seal with power to acquire, hold and dispose of moveable or immovable property and shall, by the said name, sue and be sued.

(3) The Authority shall not dispose of its immovable property without prior approval of the Government.

4. Composition of Authority.– (1) The Authority shall consist of:

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| (a) | Chief Minister or his nominee. | Chairperson |
| (b) | a person nominated by the Chief Minister. | Vice Chairperson |
| (c) | Chairperson of each Agency. | Members |
| (d) | Chairman, Planning and Development Board or his representative not below the rank of Additional Secretary. | Member |
| (e) | Secretary to the Government, Finance Department or his representative not below the rank of Additional Secretary. | Member |
| (f) | Secretary to the Government, Housing, Urban Development and Public Health Engineering Department or his representative not below the rank of Additional Secretary. | Member |
| (g) | Secretary to the Government, Local Government and Community Development Department or his representative not below the rank of Additional Secretary. | Member |
| (h) | Managing Directors of each Agency. | Members |
| (i) | four technical experts, each from the field of water supply, sanitation, hydrology and law. | Members |
| (j) | Director General. | Member/Secretary |

(2) The Chief Minister may nominate a person as Vice Chairperson for such period as he may deem fit.

(3) The Members at clause (i) of sub-section (1), shall be nominated by the Chief Minister for a period of three years who shall serve during the pleasure of the Chief Minister.

(4) The Vice Chairperson or Member at clause (i) of sub-section (1), may resign from his office before the expiry of tenure by submitting his written resignation to the Chief Minister.

(5) The Authority may co-opt any other expert for its assistance in the meeting but such co-opted expert shall not have any right to vote.

5. Meetings of Authority.– (1) The Authority shall meet, at least, once in three months at such time and place and observe such procedure with regard to transaction of its business as may be prescribed by the regulations and until so prescribed, as the Authority may determine.

(2) The meetings of the Authority shall be presided over by the Chairperson; or, in his absence, by the Vice Chairperson and both the Chairperson and vice Chairperson are not available then by a Member so elected by the Members present.

(3) The quorum for a meeting of the Authority shall be one half of its total Members.

(4) The decisions of the Authority shall be taken by majority of the Members present and voting and in the event of equality of votes, the Chairperson or the person presiding over the meeting, as the case may be, shall have the casting vote.

(5) The Director General shall maintain a complete record of minutes of the meeting of the Authority.

(6) No act, decision, order or proceedings of the Authority shall be invalid by reason of any vacancy or defect in the constitution of the Authority.

6. Powers and functions of Authority.– (1) The Authority shall oversee and supervise the functions of the Agency for the purposes of the Act.

(2) Without prejudice to the generality of the foregoing provision, the Authority shall:

- (a) make and enforce policies for the development and maintenance of water supply and sanitation systems;
- (b) develop, propose and implement key performance indicators, as well as, minimum standards for service delivery by the Agency;
- (c) review and monitor performance of the Agency;
- (d) determine, review and approve fee and charges for supply of water, sanitation services or any other service provided under the Act;
- (e) coordinate with any other authority performing similar functions in any other area;
- (f) review and decide human resource related matters;
- (g) administer and enforce the Act and rules and regulations made or framed thereunder;
- (h) hire advisors or consultants for the purposes of the Act;
- (i) regulate and prohibit the use and extraction of groundwater;
- (j) constitute standing or special committees or any other committees as it deems necessary and delegate or assign functions to such committees for carrying out the purposes of the Act; and
- (k) perform such other functions or exercise such other powers as may be necessary and ancillary thereto.

7. Director General.– (1) The Chief Minister shall, on such terms and conditions as may be determined by him, appoint the Director General of the Authority for a period of three years and shall serve during the pleasure of the Chief Minister.

(2) Notwithstanding the expiration of the term of the Director General, Chief Minister may allow him to continue to hold office for a further period of three months or till his successor enters upon his office, whichever is earlier.

(3) The Director General shall be responsible for general administration of the Authority and shall perform such other functions as provided under the Act or assigned to him by the Authority.

(4) The Director General shall:

- (a) be the whole-time officer of the Authority;
- (b) be the principal accounting officer of the Authority; and
- (c) be competent to enter into contracts on behalf of the Authority on the direction of the Authority.

(5) The outgoing Director General shall, subject to fulfilling criteria, be eligible for re-appointment as Director General.

(6) The Director General may resign from his office, before the expiry of his tenure, by submitting his written resignation to the Chief Minister.

8. Employees of Authority.– The Authority may, from time to time, employ such officers, officials and other employees on such terms and conditions as it may prescribe.

9. Determination of fee and other charges.– The Authority shall determine, review and approve the fee and other charges for the supply of water and sanitation services and any other service provided under the Act.

10. Establishment of Agency.– (1) Upon the commencement of the Act, the following Agencies shall be deemed to have been established under the Act and continue to work in the areas for which they were established unless altered, modified or changed by the Government and shall be governed under the Act:

- (a) Lahore Water and Sanitation Agency established under the Lahore Development Authority Act, 1975 (XXX of 1975);
- (b) Faisalabad Water and Sanitation Agency, Multan Water and Sanitation Agency, Rawalpindi Water and Sanitation Agency and Gujranwala Water and Sanitation Agency established under the Development of Cities Act, 1976 (XIX of 1976).

(2) The Government may, by notification in the official Gazette, establish one or more Agencies other than the Agencies provided under sub-section (1), for providing services in the area provided in the notification.

(3) The Government may, by notification in the official Gazette, entrust any existing Agency to provide such services in such areas as may be provided in the notification.

11. Composition of Agency.– (1) Each Agency shall consist of:

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| (a) | to be nominated by the Chief Minister. | Chairperson |
| (b) | representative of Housing, Urban Development and Public Health Engineering Department, not below the rank of Additional Secretary. | Member |
| (c) | representative of Local Government and Community Development Department, not below the rank of Additional Secretary. | Member |
| (d) | representative of Finance Department, not below the rank of Additional Secretary. | Member |
| (e) | representative of Planning and Development Board, not below the rank of Additional Secretary. | Member |
| (f) | two Members of the Provincial Assembly of the Punjab, including one female Member, to be nominated by the Chief Minister. | Members |
| (g) | Deputy Commissioner of the concerned district. | Member |

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| (h) | an officer of the Authority nominated by it. | Member |
| (i) | three technical experts, including at least one female. | Members |
| (j) | Managing Director of the Agency. | Member/
Secretary |

(2) The Chairperson of the Agency shall be nominated by the Chief Minister for such a period as he deems fit, who shall serve during the pleasure of the Chief Minister.

(3) The Members at clause (i) of sub-section (1), shall be nominated by the Chief Minister for a period of three years, who shall serve during the pleasure of the Chief Minister.

(4) The Member at clause (i) of sub-section (1), may resign from his office before the expiry of his tenure by submitting his written resignation to the Chief Minister.

12. Meetings of Agency.– (1) The Agency shall meet at least once in three months at such time and place and observe such procedure with regard to transaction of its business as may be determined by it.

(2) The meetings of the Agency shall be presided over by the Chairperson, or, in his absence, by the Member nominated by the Chairperson and if so not possible, then by a Member, from amongst the Members, so elected by the Members present.

(3) The quorum for a meeting of the Agency shall be one half of its total Members.

(4) The decisions of the Agency shall be taken by majority of the Members present and voting and in the event of equality of votes, the Chairperson or the person presiding over the meeting, shall have the casting vote.

(5) The Managing Director shall maintain a complete record of the minutes of the meeting of the Agency.

(6) No act, decision, order or proceedings of the Agency shall be invalid by reason of any vacancy or defect in the constitution of the Agency.

13. Powers and functions of Agency.– (1) The Agency may perform such functions and exercise such powers, within its area as are necessary for carrying out the purposes of the Act.

(2) Without prejudice to the generality of the foregoing provisions of sub-section (1), the Agency shall have power to:

- (a) develop, operate, maintain and provide water supply, sewerage and drainage systems;
- (b) initiate and maintain a continuous process of comprehensive development and planning of water supply, sewerage and drainage services;
- (c) plan, design, construct, operate and maintain water supply, sewerage, drainage systems and schemes, including water treatment plants, waste water treatment plants and disposal systems and stations;
- (d) establish, maintain and periodically revise as necessary, planning controls, design and construction criteria, and regulations for water supply, sewerage and drainage services for the area;
- (e) approve all proposed extension or rehabilitation works on the water supply, sewerage, drainage systems and schemes in the area whether owned and carried out by the Agency, Government, Development Agency, industrial concern, private developer, individual consumer or any other person;

- (f) prepare and implement any scheme for expanding provision of water supply, sewerage and drainage facilities to such other areas as the Authority may direct;
 - (g) take such steps for conservation of water resources as may be necessary including the imposition of fee or water conservancy or aquifer charges with prior approval of the Authority;
 - (h) undertake awareness campaigns regarding water conservation, drainage, water supply and sewerage through media, seminars, publications and other available means of information technology;
 - (i) hire, on such terms and conditions as it may determine, advisors, consultants, experts or other administrative or technical personnel for the discharge of its functions under the Act;
 - (j) collect such fee and charges as may be determined by the Authority;
 - (k) cause removal of any works obstructing the water supply, sewerage or drainage network and to prevent any activity that disrupts or interferes therewith;
 - (l) enter into contracts, on behalf of the Authority as delegated to it by the Authority for discharge of its functions, including outsourcing any part thereof to a third-party in such manner as may be determined by the Authority;
 - (m) implement measures and standards determined by the Authority;
 - (n) with prior approval of the Authority, undertake any joint venture or work in association with a foreign or domestic agency, corporation, company, authority or person and may subscribe to the equities and acquire such other rights and obligations as may be necessary for such joint venture or association; and
 - (o) perform and carry out any other act, duty or function necessary to give effect to its functions under the Act.
- (3) The Agency may also undertake such other function entrusted to it under any other law for the time being in force.
- (4) Under intimation to the Authority, the Agency may, subject to its capacity, perform such functions or execute such schemes as entrusted to it by the Government, Local Government or any other authority or agency established under any other law for the time being in force.
- (5) In addition to the powers and functions provided under sub-section (1), the Agency may undertake construction, improvement, maintenance, operation and expansion of:
- (a) water supply works including wells, water treatment plants and other facilities for collecting, pumping, storing and distributing water to all types of consumers; and
 - (b) sewerage works for collecting, pumping, treating and disposing of sewage and the provision of storm-water drainage facilities.

14. Managing Director.– (1) The Managing Director, for each Agency, shall be appointed by the Chief Minister for a period of three years, on such terms and conditions as may be prescribed through rules and until so prescribed, as may be determined by the Chief Minister and he shall serve during the pleasure of the Chief Minister.

(2) Notwithstanding the expiration of the term of the Managing Director, Chief Minister may allow him to continue to hold office for a further period of three months or till his successor enters upon his office, whichever is earlier.

(3) The Managing Director shall:

- (a) be the whole-time officer of the Agency;
- (b) have the general and active management of the business of the Agency;
- (c) ensure the implementation of the orders and resolutions of the Agency; and
- (d) exercise such other powers and perform such other functions as may be entrusted to him by the Agency.

15. Appointment of officers and employees.– The Agency may appoint such officers, officials and other employees, as it considers necessary for efficient performance of its functions, on such terms and conditions as it may determine.

16. Permissions.– (1) No person shall build a private drain, empty a private drain into a public drain or install any equipment that interferes with, or affects the use of the Agency's water supply, sewerage and drainage network without obtaining prior permission of the Agency.

(2) No person shall develop, build, construct any works, block, building, factory, industry or house where water is intended to be used or drained unless a layout of the drawings has been submitted to the Agency and its permission obtained thereon.

(3) Any person desirous of undertaking any act prohibited under this section shall apply to the Agency for its permission and the Agency may give its approval, in such manner, on such terms and conditions and on payment of such fee as may be prescribed through regulations.

17. Control of discharge.– No industrial waste shall be discharged into the Agency's sewerage or drainage system without obtaining a license from the Agency on such terms and conditions, on payment of such fee and in such manner as may be prescribed by regulations.

18. Right of entry.– (1) The Agency shall have power to authorize its employees to enter any land, house or other building within its area and to carry out its functions, in, on, under or over that land, house or building and to take any action, including but not limited to digging of soil, laying down of pipes or lines, construction or installation of any works, inspection or repair of any pipes or mains, for the purposes of discharging its functions under the Act.

(2) Where entry under sub-section (1) is refused by the owner or occupier of the said land, house or building, the Agency may apply to the concerned Magistrate for an order to enable such entry to be carried out.

19. Groundwater.– (1) Notwithstanding anything contained in any other law for the time being in force, ownership of groundwater resources, within the area, shall vest in the Authority and the Agency shall have power to control and regulate use thereof in accordance with the provisions of the Act.

(2) Notwithstanding the foregoing, the Authority may, by notification in the official Gazette, amend, modify or alter boundaries of an area for the purpose of this section in order to bring the geographical boundary on land in line with the boundary of the underlying aquifer and its hydrogeological area of influence and any additional area so notified under this sub-section that extends beyond the area of the Agency shall be referred to as the groundwater basin area in which the Agency will exercise the powers conferred by this section only.

20. Controlled area.– (1) The Authority may, in consultation with the concerned Agency, declare, by notification in the official Gazette, any locality within the area or the groundwater basin area to be a controlled area of the concerned Agency for the purposes of the Act and may issue in respect of such controlled area such directions as may be necessary for the conservation of groundwater.

(2) Where a declaration has been made under sub-section (1), no person or any other agency shall install a tube-well, a water-pump or any similar device within the area or the groundwater basin area, as the case may be, to extract water from the aquifer without obtaining a license from the Agency in such manner and on such terms and conditions as may be prescribed by the regulations and any person who has already made such an installation prior to the issuance of the declaration under sub-section (1) shall obtain a license from the Agency in respect thereof within such period, on payment of such fee and on such terms and conditions as may be prescribed by the regulations.

(3) Any person violating the provisions of sub-section (2) shall be liable to punishment under the Act along with closure or sealing of the said tube-well and disconnection of any other service by the Agency.

21. Fund of Authority.– (1) There shall be a Fund to be known as the Punjab Water and Sanitation Authority Fund and a separate fund of each Agency which shall vest in the Authority and shall be utilized by the Authority and its Agency to perform their functions and meet their expenses including the payment of salaries and other remuneration to their officers, employees, experts, advisers and consultants in such manner as may be prescribed by the regulations.

(2) The Fund shall consist of:

- (a) loans and grants by the Government;
- (b) all moneys received from the Federal Government, Government and their bodies, local government, or any national or international agency by way of grants, loans, advances or otherwise;
- (c) all fee, charges and other moneys received by the Authority or the Agency;
- (d) all moneys received by the Authority and the Agency from the disposal of lands, buildings and other movable and immovable property;
- (e) income from lease of property or from any investment made in pursuance of the Act; and
- (f) all other sums received by the Authority and the Agency.

(3) The Authority may, in consultation with Finance Department and with prior approval of the Government, borrow money or raise funds by issuing bonds or debentures or otherwise for carrying out the purposes of the Act.

(4) The Authority and its Agency may open their accounts in any scheduled bank in such manner as may be prescribed and may, in case of excess amount, invest in Government securities, Government sponsored saving schemes in such manner as may be determined by the Authority and its Agency.

(5) The fee and other charges collected by the Agency shall be transmitted to the Fund at such ratio as may be determined by the Government.

22. Fee and charges.– (1) The Agency shall collect such fee and charges for the provision of water supply, sewerage and drainage services or any other service provided under the Act within its area as may be determined by the Authority.

(2) The Agency, with prior approval of the Authority, in relation to its groundwater basin area, may collect a groundwater extraction charges at such rate as may be necessary for regulating the use and extraction of groundwater.

(3) The Agency, with prior approval of the Authority, may collect a water conservation charges for the purpose of securing sustainable use and conservation of groundwater.

(4) The Agency, with prior approval of the Authority, may collect such surcharge as may be determined by the Authority.

(5) The imposition of a fee, charges and surcharge by an Agency, under this section, shall be published on the website of the Agency.

23. Budget.— (1) The Director General, in case of Authority and Managing Director, in case of Agency, shall prepare, in such manner and at such time as may be determined by the Authority, their respective budgets in respect of each financial year.

(2) The Director General shall place the budget of the Authority, for approval, before the Authority and Managing Director shall place the Agency's budget, after its recommendation, before the Authority for approval by the Authority:

Provided that if the budget of the Agency is not approved by the Authority within thirty days from its receipt, without any observation in writing by the Authority, it shall be deemed to have been approved by the Authority.

24. Accounts.— The Authority and the Agency shall maintain proper accounts and other relevant records and prepare annual statement of accounts in such form and manner as may be prescribed through the regulations.

25. Audit.— (1) In addition to the audit conducted by the Government, the Authority and Agency shall appoint separate firms of chartered accountants placed in category 'A' by State Bank of Pakistan, for the annual audit of their accounts.

(2) The auditors, appointed under sub-section (1), shall submit their reports to the Authority and the Agency, as the case may be, and the Authority and the Agency shall take such actions and make such decisions as may be necessary in light of the audit report.

26. Annual report.— (1) The Authority shall, within six months of the close of a financial year, submit to the Government an annual report.

(2) The Annual report shall consist of:

- (a) the statement of accounts and audit reports of the Authority and the Agency;
- (b) a comprehensive statement of the works and activities of the Authority and the Agency during the preceding financial year and its proposed projects and schemes; and
- (c) such other matters as may be prescribed or as the Authority may consider appropriate.

(3) The Agency shall submit its report comprising of statements and other matters, as provided under clauses (a), (b) and (c) of sub-section (2), within three months of the close of a financial year, to the Authority.

(4) The Government shall, within three months of the receipt of the annual report from the Authority, cause it to be laid in Provincial Assembly of the Punjab.

27. Offences, penalties and procedure.— (1) If a person contravenes any provision of the Act, he shall, if no other penalty is provided for such contravention, be punishable with imprisonment for a term which may extend to one year or with fine which may extend to five hundred thousand rupees or with both.

(2) A person who contravenes the provision of section 20 shall be liable to imprisonment which may extend up to thirty days but not less than three days and fine which may extend to one million rupees but not less than fifteen thousand rupees.

(3) If a person continues to violate any order of the Authority or the Agency, he shall, in addition to any other punishment under the Act, be liable to punishment of fine which may extend to five thousand rupees for each day, the offence continues.

(4) If a person fails to obtain any license or permit required under the Act, rules and regulations made or framed under the Act, he shall be liable to punishment of fine which may extend to twenty-five thousand rupees.

(5) If a person prevents, restricts or interferes with the performance or discharge by any employee of the Authority or the Agency of any of its functions or obligations, he shall be liable to imprisonment which may extend to thirty days and fine which may extend to twenty thousand rupees or with both.

(6) An offence punishable under the Act shall be cognizable on a complaint, in writing, of an officer authorized by the Authority or the Agency to the officer in charge of the police station.

28. Trial of offences.— (1) An offence under the Act shall be cognizable and bailable.

(2) The offences under the Act shall be tried in accordance with the provisions of the Code of Criminal Procedure, 1898 (V of 1898).

29. Bar of jurisdiction.— No order made in exercise of any power conferred by or under the Act shall be called in question in any Court except in the manner as provided under the Act.

30. Delegation.— (1) The Authority may delegate to the Vice Chairperson, Director General, its committee, a Member, officer or employee, or its Agency or its Member, officer or employees any of its functions and powers subject to such conditions as it may think fit, except the following:

- (a) adaptation or amendment or repeal of regulations;
- (b) approval of annual budget of the Authority;
- (c) consideration and decision on the audit reports;
- (d) constituting a committee or filling a vacancy therein;
- (e) filling a vacancy in the Authority; and
- (f) power to declare the groundwater basin area.

(2) The Agency may delegate to the Managing Director, its Members, officers or its employees such powers and functions subject to such conditions as it may deem appropriate.

31. Indemnity.— No suit, prosecution or other legal proceedings shall lie against the Authority or the Agency and their Chairperson, Vice Chairperson, Members, officers, employees, the Director General, the Managing Director, in respect of anything done or intended to be done in good faith under the Act.

32. Recovery of dues.— Any sum that is due to the Authority or the Agency shall be recoverable as arrears of land revenue.

33. Employees to be public servant.— All employees of the Authority or the Agency shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code, 1860 (XLV of 1860).

34. Power to make rules.— The Government may, by notification in the official Gazette, make rules for carrying out the purposes of the Act.

35. Power to frame regulations.— Subject to the Act and the rules made thereunder, the Authority may, by notification in the official Gazette, frame regulations for carrying out the purposes of the Act.

36. Al-Jazari Water and Sanitation Academy.— (1) The Al-Jazari Water and Sanitation Academy situated at Lahore shall be deemed to be under the Authority from the date of commencement of the Act and shall continue to perform its functions as already assigned to it until altered, modified or changed by the Authority through the regulations.

(2) All assets, liabilities or properties moveable or immovable of the Al-Jazari Water and Sanitation Academy shall remain vested in it but its administration and superintendence shall stand transferred to the Authority.

(3) The Academy may recruit trainers, instructors, officers and such other employees in such manner as may be prescribed through regulations.

37. Repeal, omission and savings.— (1) Sub-sections (2) to (6) of section 10, sub-section (2) of section 28 and section 29 of the Lahore Development Authority Act, 1975 (XXX of 1975), and clause (xvi) of sub-section (2) of section 7, sub-section (2) of section 27 and section 28 of the Punjab Development of Cities Act, 1976 (XIX of 1976) are hereby repealed and entries at Sr. No.1 and 2 of Fourth Schedule of the Punjab Water Act, 2019 (XXI of 2019) are hereby omitted.

(2) Notwithstanding the repeal under sub-section (1), all schemes, projects, or works started by the following Agencies but not completed shall be deemed to have been started, continued to be executed under the provisions of the Act:

- (a) Lahore Water and Sanitation Agency established under the Lahore Development Authority Act, 1975 (XXX of 1975); and
- (b) Faisalabad Water and Sanitation Agency, Multan Water and Sanitation Agency, Rawalpindi Water and Sanitation Agency and Gujranwala Water and Sanitation Agency established under the Development of Cities Act, 1976 (XIX of 1976).

(3) Notwithstanding the repeal under sub-section (1), all rules made, regulations framed, appointments made, orders and notifications issued, land acquired, schemes prepared or executed, rates determined and penalties and fee imposed, or other charges levied, contracts entered into, bank accounts opened or fixed deposits made, suits instituted by or against the Agencies mentioned in sub-section (2) or any other right accrued, or liability incurred or action taken or proceedings initiated under the repealed Acts, shall, so far as they are consistent with the provisions of the Act, continue in force and be deemed to have been made, imposed, levied, issued, entered into, opened, instituted, prepared, executed, accrued or incurred, taken and initiated by the Agency under the Act:

Provided that the existing employees of the Agencies given in sub-section (2), shall continue to serve in their respective agencies and their terms and conditions shall not be altered to their disadvantage.

38. Act to prevail.— In the event of any conflict or inconsistency between the provisions of the Act and the provisions of any other law, the provisions of the Act shall, to the extent of such conflict or inconsistency, prevail.

39. Removal of difficulties.— If any difficulty arises in giving effect to any of the provisions of the Act, the Government may, by notification in the official Gazette, make

such order, not inconsistent with the provisions of the Act, as it may deem necessary for the purposes of removing such difficulty.